

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Volha Shauchenka	Team: Squad #15	CCRB Case #: 201607580	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 09/01/2016 6:35 PM	Location of Incident: § 87(2)(b) En route to the 45th PCT SH	18 Mo. SOL 3/1/2018	Precinct: 43
Date/Time CV Reported Fri, 09/02/2016 3:20 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 09/02/2016 3:20 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officer			Unknown
2. POM Randy Kyrk	25350	948372	WARRSEC
3. DT3 Melvin Moultrie	05304	933046	DB BXHM
4. POM Ronnie Mejia	15998	949317	045 PCT
5. SGT Jason Diaz	3215	946682	045 PCT
6. POM Jonathan Azzaro	05007	947977	045 PCT
7. POM Albert Garcia	01331	944583	045 PCT
8. POM Jose Ortiz	21939	946082	045 DET
			045 PCT
10. An officer			Unknown

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT2 Christin Reyes	02808	927407	DB BXHM
2. LCD Catherine Mylott	00000	890622	045 DET
3. POM Anthony Jackson	04787	935046	045 PCT
4. POM Kenneth Caufield	21338	945569	045 PCT
5. POM Jose Barbosa	20536	917272	045 DET

Officer(s)	Allegation	Investigator Recommendation
A . POM Randy Kyrk	Abuse: Inside the § 87(2)(b) in the Bronx, Police Officer Randy Kyrk stopped § 87(2)(b)	A . Exonerated

Officer(s)	Allegation	Investigator Recommendation
B . POM Jose Ortiz	Abuse: Inside the § 87(2)(b) in the Bronx, Police Officer Jose Ortiz stopped § 87(2)(b)	B . Exonerated
C . SGT Jason Diaz	Force: In front of § 87(2)(b) in the Bronx, Sergeant Jason Diaz used physical force against § 87(2)(b)	C . Exonerated
D . SGT Jason Diaz	Force: In front of § 87(2)(b) in the Bronx, Sergeant Jason Diaz used physical force against § 87(2)(b)	D . Exonerated
E . POM Ronnie Mejia	Force: In front of § 87(2)(b) in the Bronx, Police Officer Ronnie Mejia used physical force against § 87(2)(b)	E . Exonerated
F . Officer	Force: In front of § 87(2)(b) in the Bronx, officers used physical force against § 87(2)(b)	F . Officer(s) Unidentified
G . An officer	Force: In front of § 87(2)(b) in the Bronx, an officer restricted § 87(2)(b)'s breathing.	G . Officer(s) Unidentified
H . Officer	Discourtesy: In front of § 87(2)(b) in the Bronx, officers spoke discourteously to § 87(2)(b)	H . Officer(s) Unidentified
I . POM Jonathan Azzaro	Abuse: En route to the 45th Precinct stationhouse, Police Officer Jonathan Azzaro did not obtain medical treatment for § 87(2)(b)	I . Unsubstantiated
J . An officer	Abuse: En route to the 45th Precinct stationhouse, an officer did not obtain medical treatment for § 87(2)(b)	J . Officer(s) Unidentified
K . POM Jose Ortiz	Abuse: Police Officer Jose Ortiz entered and searched § 87(2)(b) in the Bronx.	K . Exonerated
L . POM Jose Ortiz	Abuse: At § 87(2)(b), in the Bronx, Police Officer Jose Ortiz failed to show the search warrant to § 87(2)(b)	L . Substantiated
M . POM Jose Ortiz	Abuse: In front of § 87(2)(b) in the Bronx, Police Officer Jose Ortiz failed to show the search warrant to § 87(2)(b)	M . Substantiated
N . POM Albert Garcia	Abuse: In front of § 87(2)(b) in the Bronx, Police Officer Albert Garcia threatened to arrest § 87(2)(b)	N . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On September 1, 2016, § 87(2)(b) filed this complaint on behalf of herself and her nephew § 87(2)(b) with IAB via the phone, generating log #16-31212. On September 2, 2016, § 87(2)(b) filed a duplicate complaint on behalf of herself, her niece § 87(2)(b) § 87(2)(b)'s children § 87(2)(b) and § 87(2)(b) and § 87(2)(b) § 87(2)(b)'s daughter § 87(2)(b) in person at the CCRB.

On September 1, 2016, at approximately 6:35 p.m., PO Jose Ortiz of the 45th Precinct Detective Squad and PO Randy Kyrk of the Bronx Warrant Squad attempted to approach § 87(2)(b) at the § 87(2)(b) located at the intersection of § 87(2)(b) in the Bronx in regards to an active probable cause to arrest I-Card (**Allegations A and B**). § 87(2)(b) fled the location and ran along § 87(2)(b) towards the southeast corner of § 87(2)(b), where he escaped from Det. Melvin Moultrie and Det. Christine Reyes of the Detective Bureau Bronx Homicide Division who were summoned to the location by Lt. Catherine Mylott of the 45th Precinct Detective Squad to assist her, PO Ortiz, PO Kyrk and PO Jose Barbosa of her command in the execution of a valid Bronx County search warrant for § 87(2)(b)'s § 87(2)(b) in regards to a firearm used in a homicide, which was also going to be executed at the same time with § 87(2)(b)'s apprehension. Parkchester South Condominium Public Safety and Security Department officers assisted NYPD officers during that operation as well. After avoiding contact with Det. Moultrie and Det. Reyes, § 87(2)(b) crossed the § 87(2)(b) and was apprehended by Sgt. Jason Diaz and PO Ronnie Mejia of the 45th Precinct with assistance of multiple unidentified officers in front of § 87(2)(b). During that process, Sgt. Diaz pushed § 87(2)(b) against the wall, struck him multiple times on his body with a closed fist, and took him to the ground together with PO Mejia (**Allegations C, D, and E**). After § 87(2)(b) was taken to the ground, some unidentified officers also allegedly kicked him on his head, ribs, and legs and one of them allegedly restricted § 87(2)(b)'s breathing by placing his knee on the back of § 87(2)(b)'s neck (**Allegations F and G**). During the apprehension, § 87(2)(b) was calling for his mother and some unidentified officers allegedly asked him why he was calling for his mother like a “pussy” or a “bitch” (**Allegation H**). § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) who reside in the same apartment as § 87(2)(b) heard § 87(2)(b)'s screams from inside their apartment and ran to the § 87(2)(b). After § 87(2)(b) was handcuffed, he was transferred into custody of PO Jonathan Azzaro, PO Anthony Jackson and PO Kenneth Caufield of the 45th Precinct who were assigned to a prisoner van. PO Azzaro, PO Jackson and PO Caufield transported § 87(2)(b) to the 45th Precinct stationhouse, and while en route, § 87(2)(b) allegedly requested to be taken to the hospital. PO Azzaro and one of his partners who § 87(2)(b) could not see allegedly told him they would not take him there because he was running away from the officers (**Allegations I and J**).

After § 87(2)(b) was taken away from the scene, PO Ortiz, PO Kyrk, Lt. Mylott, PO Barbosa, Det. Moultrie and Det. Reyes all proceeded to the target apartment and PO Ortiz, PO Kyrk, Lt. Mylott and PO Barbosa conducted its search while Det. Moultrie and Det. Reyes were securing the front door outside the apartment (**Allegation K**). After the search, which yielded negative results, was complete and officers exited the apartment, § 87(2)(b) allegedly asked PO Ortiz to show her the search warrant, but he allegedly refused (**Allegation L**). All officers headed outside, where § 87(2)(b) allegedly asked all of the officers for the search warrant, but no one provided it to her (**Allegation M**). Sgt. Diaz, PO Mejia and their partner PO Albert Garcia of the same command were waiting outside at the corner of § 87(2)(b) in case

§ 87(2)(b) was arrested and charged § 87(2)(b) § 87(2)(b)

§ 87(2)(g) [REDACTED] § 87(2)(b) [REDACTED]

[REDACTED] § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED]

[REDACTED] § 87(2)(b) [REDACTED]

[REDACTED]

[BR 34]
Camera 8



[BR 43]
Camera 4

- The case is unsuitable for mediation due to the arrest associated with the incident.
- § 87(2)(b), § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of March 6, 2017 [BR 74].
- On § 87(2)(b), § 87(2)(b) filed a Property Damage or Loss Claim with the City of New York claiming \$28100 in property damage [BR 60].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [illegible]

§ 87(2)(b) [§§ 86(3)&(4)]
§ 87(2)(c)

Civilian and Officer CCRB Histories

- This is a fifth CCRB complaint filed by § 87(2)(b) [BR 73]. § 87(2)(g)
- This is the first CCRB complaint filed on behalf of § 87(2)(b), § 87(2)(b), and § 87(2)(b) [BR 73].
- This is a fifth CCRB complaint filed on behalf of § 87(2)(b) [BR 73]. § 87(2)(g)
- PO Kyrk has been a member of the service for seven years and has five previous CCRB complaints filed against him containing seven allegations, none of which were substantiated. In case #201402831, there is one stop allegation pleaded against PO Kyrk, which was closed as complainant uncooperative. § 87(2)(g)
- PO Ortiz has been a member of the service for nine years and has seven previous CCRB complaints filed against him containing 10 allegations, none of which were substantiated. In case #201604232, there is a premises entered and/or searched allegation pleaded against him that was closed as unsubstantiated. § 87(2)(g)
- Sgt. Diaz has been a member of the service for eight years and has three previous CCRB complaints filed against him containing four allegations, none of which were substantiated. In cases #200907060 and #201300822 there are two physical force allegations pleaded against him that were closed as unsubstantiated and exonerated, respectively. § 87(2)(g)
- PO Mejia has been a member of the service for six years and has two previous CCRB complaints filed against him containing hit by a vehicle and physical force allegations that were closed as complainant uncooperative and unsubstantiated, respectively.
- PO Azzaro has been a member of the service for eight years and has one previous CCRB complaint filed against him containing two allegations, none of which were substantiated § 87(2)(g).
- PO Garcia has been a member of the service for nine years and has three other CCRB complaints filed against him containing nine allegations, § 87(2)(g). In case #201606965, there is a substantiated vehicle stop allegation pleaded against PO Garcia, for which CCRB has recommended formalized

training as a penalty. As of March 23, 2017, NYPD has not taken any disciplinary action against PO Garcia in regards.

- Det. Moultrie has been a member of the service for 13 years and has seven previous CCRB complaints filed against him containing 12 allegations, § 87(2)(g) [REDACTED]. In case #200509009, there are force, question and/or stop, and retaliatory arrest substantiated allegations pleaded against him, for which the CCRB has recommended charges as a penalty. Det. Moultrie was penalized with command discipline A as a result. In case #200600429, there is a question and/or stop substantiated allegation pleaded against Det. Moultrie, for which the CCRB recommended charges as a penalty. Det. Moultrie was not penalized for the incident as NYPD declined to prosecute him.

§ 87(2)(g) [REDACTED]

- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) [REDACTED] alleged that after he fell to the ground multiple officers kicked him in his head, ribs and legs and referred to him as a “pussy” or a “bitch.” Additionally, one of the officers allegedly restricted § 87(2)(b) [REDACTED]’s breathing by placing his knee on the back of § 87(2)(b) [REDACTED]’s neck. § 87(2)(g) [REDACTED].
- § 87(2)(b) [REDACTED] also alleged that after he was placed into a prisoner van, two officers allegedly refused to take him to the hospital. § 87(2)(b) [REDACTED] noted that one of the officers was the driver of the van and described him as a white male, 6’0” tall, 195 pounds, with golden hair and blue eyes, in his mid-30s, wearing a uniform. § 87(2)(b) [REDACTED] did not see the second officer. PO

Azzaro, PO Jackson and PO Caufield all confirmed they transported § 87(2)(b) to the 45th Precinct stationhouse. According to NYPD records, PO Azzaro is a white male, 5'11" tall, 170 pounds, with brown hair and brown eyes, and was § 87(2)(b) at the time of the incident; PO Caufield is a white male, 5'7" tall, 180 pounds, with brown hair and blue eyes, and was § 87(2)(b) at the time of the incident; PO Jackson is a black male [NYPD 37, 38]. § 87(2)(g)

- § 87(2)(g)
- § 87(2)(b) alleged that after the search warrant was executed, she interacted with three plain clothes officers who were standing near an unmarked vehicle parked near her building when a Hispanic male officer who is 5'6" tall, well build, and is in his late 30-s, allegedly threatened her with arrest. His partners were described as Hispanic and black males. Sgt. Diaz, PO Mejia and PO Garcia all testified they were the anti-crime unit who was asked to participate during the warrant execution, and PO Garcia confirmed that all three officers were standing by § 87(2)(b) in order to secure the windows of the target apartment during the search. Although both Sgt. Diaz and PO Mejia denied interacting with § 87(2)(b) PO Garcia confirmed that § 87(2)(b) approached his partners and him and was allegedly yelling at them. According to NYPD records, PO Garcia is a Hispanic male, 5'7" tall, 190 pounds and was § 87(2)(b) at the time of the incident; Sgt. Diaz is a Hispanic male, 5'8" tall and was § 87(2)(b) at the time of the incident; PO Mejia is a Hispanic male with a darker skin color, 6'0" tall, 230 pounds, and was § 87(2)(b) at the time of the incident [NYPD 39, 40, 41]. § 87(2)(g)

Allegations Not Pleaded

- **Force:** Although § 87(2)(b) and § 87(2)(b) alleged that § 87(2)(b) was struck by a police vehicle, § 87(2)(b) did not corroborate that; § 87(2)(g)
- **Force:** Although video recording of the incident shows Sgt. Diaz move his knee towards § 87(2)(b) upon their initial contact, the quality of the video does not permit seeing whether Sgt. Diaz kned § 87(2)(b) Additionally, § 87(2)(b) did not make this allegation himself. § 87(2)(g)
- **Force:** Despite the fact that § 87(2)(b) stated that when she ran outside and attempted to talk to § 87(2)(b) while he was being placed into the van, two officers pushed her to the side, § 87(2)(g) § 87(2)(b) did not indicate she felt pain

or sustained any injuries from it. § 87(2)(g)

- **Abuse of Authority:** Although § 87(2)(b) filed a Property Damage or Loss Form with the New York City Comptroller's Office, she did not make a property damage allegation in any of her statements to the CCRB nor did she provide photographs of any damaged property. § 87(2)(g)
- **Force:** In her unverified phone statement to the CCRB made on October 27, 2016, § 87(2)(b) alleged that unidentified individuals witnessed officers of the 43rd and 45th Precinct hit § 87(2)(b) in the head at an unknown location on October 26, 2017 [BR 46]. § 87(2)(b) did not make this allegation, § 87(2)(g)

Recommendations

Allegation A – Abuse of Authority: Inside the § 87(2)(b) in the Bronx, Police Officer Randy Kyrk stopped § 87(2)(b)

Allegation B – Abuse of Authority: Inside the § 87(2)(b) in the Bronx, Police Officer Jose Ortiz stopped § 87(2)(b)

In his verified statement to the CCRB, § 87(2)(b) stated that he was standing in the playground talking to his friends when he observed an unmarked van pull over to the side and two plainclothes officers jump out of it [BR 50]. § 87(2)(b) did not know they were police officers and just started running away towards his house since he became nervous. § 87(2)(g)

When interviewed at the CCRB, PO Kyrk explained that Lt. Mylott and PO Ortiz were planning to execute a search warrant inside § 87(2)(b)'s apartment pursuant to PO Ortiz's homicide investigation of § 87(2)(b) [BR 55]. An officer from the 45th Precinct Detective Squad had conducted a separate investigation of § 87(2)(b) for a possible robbery and generated a probable cause to arrest I-Card for him, which was then referred to PO Kyrk for further investigation. PO Kyrk noted he had previously arrested § 87(2)(b) is familiar with his family, knows the layout of his apartment and possible escape routes. Therefore, Lt. Mylott and PO Ortiz requested PO Kyrk's assistance during the execution of the search warrant. Prior to the incident, PO Kyrk and the rest of the officers involved in the warrant execution went to the Parkchester South Condominium Public Safety and Security Department headquarters to obtain intelligence on § 87(2)(b)'s whereabouts since the public safety officers are also familiar with § 87(2)(b) and have an extensive video surveillance system. According to the Parkchester South Condominium Public Safety and Security Department, § 87(2)(b) was at a basketball court at the § 87(2)(b) where all the officers headed. PO Kyrk and PO Ortiz were travelling in one vehicle, and as soon as they pulled over to the side of the playground, § 87(2)(b) fled the location. PO Kyrk and PO Ortiz together with multiple other officers started chasing § 87(2)(b) on foot.

During his in-person statement to the CCRB, PO Ortiz corroborated PO Kyrk's testimony and added that PO Kyrk and he wanted to apprehend § 87(2)(b) outside for safety purposes to prevent him from using a possible firearm the officers were going to look for inside his apartment [BR 51]. Although PO Ortiz did not recall when exactly he became aware of the active I-Card for

§ 87(2)(b) he noted that Det. Michael Connor of his command had informed him of its existence prior to the incident date.

I-Card number § 87(2)(b) issued on § 87(2)(b) lists § 87(2)(b) as a perpetrator [NYPD 05]. The I-Card was issued in regards to criminal complaint #§ 87(2)(b) where § 87(2)(b) is listed as wanted § 87(2)(b). The narrative of § 87(2)(b)'s arrest also indicates he was arrested for the same incident [NYPD 35].

According to New York State Criminal Procedure Law § 140.50, an officer may stop an individual if he/she believes that the individual has committed, is committing or is about to commit a crime [BR 65].

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **exonerated**.

Allegation C – Force: In front of § 87(2)(b) in the Bronx, Sergeant Jason Diaz used physical force against § 87(2)(b)

Allegation D – Force: In front of § 87(2)(b) in the Bronx, Sergeant Jason Diaz used physical force against § 87(2)(b)

Allegation E – Force: In front of § 87(2)(b) in the Bronx, Police Officer Ronnie Mejia used physical force against § 87(2)(b)

§ 87(2)(b) stated that from the playground he ran towards his house, and when he reached the restaurant located at § 87(2)(b), one officer approached him first and pushed him against the wall in his chest and hands [BR 50]. The officer then punched him twice between his chin and mouth, and § 87(2)(b) fell to ground from the punches. § 87(2)(b) did not make these allegations in his initial phone statement to the CCRB. § 87(2)(b) alleged he sustained contusions to his chin from the punches [See *Photograph* BR 27]. However, § 87(2)(b) did not see medical attention in regards as he just wanted to go home after he was released from NYPD custody.

In her verified statement to the CCRB, § 87(2)(b) testified that when she was inside her apartment together with the rest of § 87(2)(b)'s family, she heard § 87(2)(b) call for his mother [BR 01]. When § 87(2)(b) ran outside, § 87(2)(b) was already in the prisoner van and she confirmed she did not witness his apprehension [BR 01]. However, in one of the follow-up phone statements to the CCRB, § 87(2)(b) indicated that she observed § 87(2)(b) being taken to the ground and hit in the head and face by an officer when she ran outside [BR 41]. § 87(2)(b) could not describe the officer as she was not able to see him. In her walk-in complaint form, § 87(2)(b) also wrote that § 87(2)(b) was hit in the head by officers [BR 64].

During her in-person statement to the CCRB, § 87(2)(b) confirmed that she heard § 87(2)(b) call for her, but when she looked out the window that is facing the restaurant, § 87(2)(b) was already on the ground and there were approximately four officers around him [BR 02].

When interviewed at the CCRB, § 87(2)(b) stated she was in her bedroom when she heard some noises on the § 87(2)(b) and her mother screamed that her brother was being arrested [BR 48]. § 87(2)(b) looked out of the kitchen window and observed police officers gathered around § 87(2)(b) by the restaurant. § 87(2)(b) could not see her brother clearly and could not specify what the

officers were doing. § 87(2)(g)

During his CCRB interview, Sgt. Diaz explained that PO Mejia, PO Garcia and he were asked by Lt. Mylott to assist her squad during the execution of the search warrant for § 87(2)(b)'s apartment [BR 59]. Sgt. Diaz noted he is also personally familiar with § 87(2)(b) as his team had previously arrested him and he is a known recidivist at his precinct. Sgt. Diaz and his partners also went to the § 87(2)(b) to apprehend § 87(2)(b) and observed him fleeing the scene. PO Garcia exited their vehicle and started chasing § 87(2)(b) on foot, while PO Mejia and Sgt. Diaz followed § 87(2)(b) in their vehicle. PO Mejia, the operator, made a right turn onto § 87(2)(b) and drove to the intersection with § 87(2)(b). During that time, Sgt. Diaz observed § 87(2)(b) escape from Det. Moultrie and Det. Reyes and cross the § 87(2)(b) towards the restaurant. Sgt. Diaz exited his vehicle and ran after § 87(2)(b) telling him to stop. Once § 87(2)(b) reached the restaurant, he turned around and started moving towards Sgt. Diaz. § 87(2)(b) approached Sgt. Diaz in what he described as a fighting stance with his arms by his chest area and grabbed Sgt. Diaz by his shirt in the neck area, which prompted Sgt. Diaz to strike § 87(2)(b) in his body with a closed fist more than one time. Sgt. Diaz could not specify which areas on § 87(2)(b)'s body he hit and noted he might have hit him in the face since § 87(2)(b) was moving around. Sgt. Diaz attempted to grab § 87(2)(b)'s hands while he attempted to strike the sergeant. Sgt. Diaz did not recall pushing § 87(2)(b) against the wall. Shortly, PO Mejia joined Sgt. Diaz and assisted Sgt. Diaz in taking § 87(2)(b) to the ground by grabbing him somewhere on his body. With PO Mejia's assistance, Sgt. Diaz was able to grab one of § 87(2)(b)'s arms and both of them took § 87(2)(b) to the ground face-down. Sgt. Diaz did not hear § 87(2)(b) complain of any pain or injury after he was taken to the ground. In approximately 10 seconds, four or five officers joined Sgt. Diaz and PO Mejia and assisted them in placing § 87(2)(b) in handcuffs.

In his testimony to the CCRB, PO Mejia corroborated Sgt. Diaz's account of the beginning of the incident and confirmed that he observed § 87(2)(b) initially run from PO Kyrk and PO Ortiz and then escape from Det. Moultrie and Det. Reyes at the corner of § 87(2)(b) [BR 57]. After parking his vehicle by § 87(2)(b)'s house, PO Mejia also jumped out and ran towards Sgt. Diaz and § 87(2)(b) who were by the restaurant. As he ran, PO Mejia observed Sgt. Diaz grab § 87(2)(b) by his chest and push him against the wall. § 87(2)(b) was flailing his arms and pushing Sgt. Diaz, while the sergeant was attempting to grab § 87(2)(b) and take him to the ground. In a matter of seconds, a number of officers joined Sgt. Diaz. When PO Mejia reached the restaurant, he observed § 87(2)(b) continuing to flail his arms, move his body around and push the officers while the officers were attempting to grab him and perform a controlled take down. Eventually, officers took § 87(2)(b) to the ground, but PO Mejia did not observe which part of his body § 87(2)(b) landed on since there were multiple officers surrounding him at the time. PO Mejia did not assist the officers in taking § 87(2)(b) to the ground and just held his hand after he was on the ground to assist them in handcuffing § 87(2)(b). PO Mejia did not observe any physical injuries on § 87(2)(b) nor did he hear him complain of any pain or injury. PO Garcia reached the location after § 87(2)(b) was handcuffed and stood there attempting to catch his breath. Upon reviewing a copy of the Threat Resistance and Injury Report that he prepared, PO Mejia noted although he marked that he performed a forcible take down, he did not actually do it and selected the closest option to what he did during the incident, namely, holding § 87(2)(b)'s hand while he was on the ground.

PO Kyrk testified that when § 87(2)(b) was physically stopped by four or five officers, he and PO Ortiz were approximately 30 to 40 feet away from the restaurant [BR 55]. PO Kyrk

observed officers perform a controlled take down on § 87(2)(b) and noted he might have been pushed against the wall prior to that. Initially, PO Kyrk stated he reached § 87(2)(b) after he was handcuffed and did not participate in the apprehension of § 87(2)(b). Upon reviewing video recording from Camera 8, PO Kyrk identified himself as a second officer running after § 87(2)(b) at 12 seconds. PO Kyrk confirmed that at 24 seconds he was standing in close proximity to § 87(2)(b) while he was being handcuffed, but was not physically assisting the officers. PO Kyrk also indicated he did not observe any physical injuries on § 87(2)(b) nor did he hear him complain of any.

PO Ortiz noted he was approximately 56 feet away from § 87(2)(b) when he was stopped by multiple uniformed officers [BR 51]. Although PO Ortiz stated he maintained visual of § 87(2)(b) the entire time, he only observed officers turn § 87(2)(b) around and handcuff him. PO Ortiz did not observe an officer push § 87(2)(b) against the wall or punch him in the face. § 87(2)(b) was never on the ground while he was being apprehended. PO Ortiz did not observe any injuries on § 87(2)(b) nor did he hear him complain of any.

PO Garcia, Det. Reyes, Det. Moultrie, Lt. Mylott, PO Barbosa, PO Azzaro, PO Jackson, PO Caufield all testified they did not observe the initial contact between § 87(2)(b) and the officers who reached him first for a number of reasons [BR 58, 53, 54, 52, 56, 61, 62, 63]. § 87(2)(g)

According to the video evidence from Camera 8 mounted at § 87(2)(b) and facing the intersection of § 87(2)(b), § 87(2)(b) appears in the frame at four seconds and runs along § 87(2)(b) towards the intersection [BR 34]. At eight seconds, an unmarked silver sedan, operated by PO Mejia, drives along Purdy § 87(2)(b) and makes a right turn onto § 87(2)(b). At 11 seconds, § 87(2)(b) escapes from Det. Moultrie and disappears behind the trees. PO Kyrk and PO Ortiz appear from the bottom frame at 12 seconds and run towards the intersection. Shortly after, an unidentified officer in uniform appears from the bottom frame as well. At the same time, a marked van operated by PO Azzaro slowly appears from behind the restaurant. § 87(2)(b) crosses the § 87(2)(b) at 16 seconds, and Sgt. Diaz now follows him closely. At 19 seconds, § 87(2)(b) reaches the restaurant wall and turns around with his hands up in the air. Sgt. Diaz reaches § 87(2)(b) and their initial contact is shielded by another officer. Sgt. Diaz leg moves forward and then backwards, but it is unclear if he has any physical contact with § 87(2)(b). At 20 seconds, § 87(2)(b) bends his upper body forward and leans against the wall with his left hand extending his right arm toward Sgt. Diaz. At 21 seconds, § 87(2)(b) either falls to the ground on his buttocks or is being forced to the ground by Sgt. Diaz when PO Mejia reaches them and blocks the view. From 22 seconds to 26 seconds, approximately nine additional officers reach § 87(2)(b) and surround him. § 87(2)(g)

§ 87(2)(b), the quality of the video does not permit to see their specific actions. Additionally, several unidentified uniformed officers who were initially following § 87(2)(b) and some of whom ran from various marked vehicles parked at the intersection within the first seconds of the incident are also among the officers surrounding § 87(2)(b).

A Threat Resistance and Injury Report #§ 87(2)(b) was prepared by Sgt. Diaz due to the fact that he used physical force towards § 87(2)(b) to overcome resistance or aggression and in self-defense [NYPD 23]. Sgt. Diaz noted that § 87(2)(b) pushed and stroke him, while he stroke him in return and performed a forcible take down. Sgt. Diaz indicated that § 87(2)(b) did not sustain any injuries during the incident.

A Threat Resistance and Injury Report #§ 87(2)(b) was prepared by PO Mejia for the same reason, where he noted he used force towards § 87(2)(b) to overcome resistance or aggression and because he was fleeing [NYPD 23]. PO Mejia marked that § 87(2)(b) was pushing him, while he performed a forcible take down. PO Mejia also indicated that § 87(2)(b) did not sustain any injuries from the interaction.

§ 87(2)(b)'s arrest photograph does not reveal any visible physical injuries on his face [NYPD 03].

According to NYPD Patrol Guide Procedure 221-01, an officer may use force when necessary in order to ensure safety of a third person or an officer, or to prevent a perpetrator from escaping custody [BR 66]. When appropriate, an officer is expected to use de-escalation techniques to safely gain voluntary compliance. In situations when this approach is not safe or reasonable, an officer may use only that amount of force necessary to gain compliance. As per New York State Penal Law §35.30, an officer may use physical force to effect and arrest or to prevent an attempt to escape custody to the extent he/she reasonably believes [BR 76].

§ 87(2)(g)

[REDACTED]

§ 87(2)(g) Therefore, it is recommended that **Allegations C, D, and E** be closed as **exonerated**.

Allegation F – Force: In front of § 87(2)(b) in the Bronx, officers used physical force against § 87(2)(b)

Allegation G – Force: In front of § 87(2)(b) in the Bronx, an officer restricted § 87(2)(b)'s breathing.

Allegation H – Discourtesy: In front of § 87(2)(b) in the Bronx, officers spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that after he fell to the ground, multiple officers allegedly kicked him in his head, ribs and feet [BR 50]. § 87(2)(b) denied resisting arrest and stated he had extended his arms up in the air and gave them up willingly. One officer allegedly placed his knee on the back of § 87(2)(b)'s neck and held him until § 87(2)(b) was handcuffed. The officer's actions affected § 87(2)(b)'s breathing since he has asthma. § 87(2)(b) did not tell anything to the officers in regards and was just calling for his mother. Some of the officers allegedly asked § 87(2)(b) why he was resisting and calling for his mother like a “pussy” or a “bitch.” It took officers approximately two minutes to handcuff § 87(2)(b) and he was then lifted off the ground. § 87(2)(b) was unable to describe any of the officers who committed the alleged misconduct since he was facing the ground at the time. § 87(2)(b) did not make either a restricted breathing or a discourtesy allegation in his phone statement to the CCRB [BR 37]. § 87(2)(b) stated he sustained bruising to his left calf and right side of his rib cage and provided photos of some abrasions to his knees and right elbow [See Photographs BR 25, 26, 28].

While § 87(2)(b) and § 87(2)(b) testified that after they ran outside, § 87(2)(b) was already in handcuffs, § 87(2)(b) stated that when she looked out of the window, § 87(2)(b) was lying on the ground face-down in handcuffs [BR 01, 48, 02]. One of the officers had his knee on § 87(2)(b)'s back and another officer was hitting him on his head with his hand. § 87(2)(b) might have been moving around so that he could breathe, and the officers were shaking his body as if they were trying to flip him up. § 87(2)(b) described all officers as white and Hispanic males in plain clothes. After observing the incident for approximately one minute, § 87(2)(b) ran outside and by the time she reached the § 87(2)(b) was already in the prisoner van.

Both Sgt. Diaz and PO Mejia denied kicking § 87(2)(b) restricting his breathing and using any profanity towards § 87(2)(b) nor did they hear or observe any other officer do so [BR 57, 59]. Although PO Kyrk, PO Otiz, Det. Moultrie, Det. Reyes, PO Jackosn, and PO Caufied testified that they did not participate in § 87(2)(b)'s physical apprehension, they all confirmed they were in close proximity to the site where he was being handcuffed after being shown video recording of the incident [BR 55, 51, 54, 53, 62, 63]. However, none of the officers admitted to using any force or profanity towards § 87(2)(b) during their interviews. Additionally, none of them admitted to observing any officers kick § 87(2)(b) restrict his breathing or hearing any officer use any profanity towards him.

Lt. Mylott, PO Barbosa, PO Garcia, and PO Azzaro also testified they did not physically assist the rest of the officers in placing § 87(2)(b) in custody and denied using any profanity towards him [BR 52, 56, 58]. PO Barbosa was shown the video recording as well, but was unable to identify himself on it and reiterated he went right inside § 87(2)(b)'s building and never approached the site of his apprehension [BR 56]. All these officers stated they did not observe

any officer kick § 87(2)(b) restrict his breathing nor did they hear any officer use any profanity towards him.

According to the video evidence from Camera 8, § 87(2)(b) was lifted off the ground at 33 seconds after his initial contact with Sgt. Diaz, and as mentioned earlier, actions of all the officers who surrounded him after Sgt. Diaz are not clearly visible due to the quality of the recording and the number of officers involved [BR 34]. While a number of officers identified themselves on the video and Lt. Mylott is seen in close proximity to § 87(2)(b) while he was being handcuffed, their actions are not visible on the video for the same reason. PO Garcia, PO Barbosa and PO Azzaro could not be identified on the video, § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Consequently, it is recommended that **Allegations F, G, and H** be closed as **officers unidentified** and **officer unidentified**, respectively.

Allegation I – Abuse of Authority: En route to the 45th Precinct stationhouse, Police Officer Jonathan Azzaro did not obtain medical treatment for § 87(2)(b)

Allegation J – Abuse of Authority: En route to the 45th Precinct stationhouse, an officer did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) further alleged that after he was placed into the prisoner van, the officers drove away from the incident location and were parked at the intersection of § 87(2)(b) and § 87(2)(b) for approximately 40 minutes [BR 50]. § 87(2)(b) asked the driver of the van and his partner why they were not going to the stationhouse and requested to be taken to the hospital because he was experiencing trouble breathing due to his asthma and could not feel his legs from having been kicked by the officers. Both officers replied that since § 87(2)(b) was running away from them, he was not going to be taken to the hospital, and he was never taken there.

During his testimony to the CCRB, PO Azzaro confirmed that PO Jackson, PO Caufield and he transported § 87(2)(b) to the 45th Precinct stationhouse [BR 61]. PO Azzaro explained that his partners and he had to wait for the supervisor's instructions where to take § 87(2)(b) for some time since the incident was not within their precinct boundaries. PO Azzaro stated neither he nor his partners spoke to § 87(2)(b) while he was in their custody, and § 87(2)(b) never requested medical attention from them. PO Azzaro also stated that neither he nor his partners denied medical attention to § 87(2)(b)

PO Jackson and PO Caufield corroborated PO Azzaro's account and confirmed that § 87(2)(b) never asked them to take him to the hospital [BR 62, 63]. Neither PO Jackson nor PO Caufield refused to take § 87(2)(b) to the hospital nor did they hear PO Azzaro do so.

According to Event Information #§ 87(2)(b) EMS unit #§ 87(2)(b) arrived on the scene at § 87(2)(b) [NYPD 25].

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Thus, it is recommended that **Allegation I** is closed as **unsubstantiated**. § 87(2)(g)

§ 87(2)(g)
§ 87(2)(b)
§ 87(2)(b) it is recommended that **Allegation J** be closed as **officer unidentified**.

Allegation K – Abuse of Authority: Police Officer Jose Ortiz entered and searched § 87(2)(b), in the Bronx.

It is undisputed that PO Kyrk, PO Ortiz, Lt. Mylott and PO Barbosa entered and searched § 87(2)(b)'s apartment where § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were also residents. PO Kyrk and PO Ortiz entered the apartment through the open front door that was left ajar and unlocked after all § 87(2)(b)'s relatives ran to the § 87(2)(b) [BR 01, 02, 48, 51, 52, 55, 56].

The Bronx County “no-knock” Search Warrant with no number listed issued by the Honorable Judge § 87(2)(b) on § 87(2)(b) permitted the search of § 87(2)(b) at § 87(2)(b) at any time § 87(2)(b).

A valid New York County Search Warrant issued by the Criminal Court may be executed pursuant to its terms. N.Y. S. Criminal Procedure Law 690.50, NYPD Patrol Guide Procedure 221-17 [BR 67, 68].

§ 87(2)(g)
§ 87(2)(b)
§ 87(2)(b) it is recommended that **Allegation K** be closed as **exonerated**.

Allegation L – Abuse of Authority: At § 87(2)(b), in the Bronx, Police Officer Jose Ortiz failed to show the search warrant to § 87(2)(b)

Allegation M – Abuse of Authority: In front of § 87(2)(b) in the Bronx, Police Officer Jose Ortiz failed to show the search warrant to § 87(2)(b)

§ 87(2)(b) stated that after the officers completed the search of her apartment, she spoke to PO Ortiz, who identified himself by name and provided his business card, in Spanish [BR 01]. PO Ortiz informed § 87(2)(b) he had a search warrant for the apartment and she asked where it was, but PO Ortiz did not show her the warrant. § 87(2)(b) noted that § 87(2)(b) and § 87(2)(b) were present when she asked for the warrant. § 87(2)(b) also alleged that she was never shown a search warrant in her statement to IAB [BR 39].

§ 87(2)(b) testified that while the officers were searching her apartment, § 87(2)(b) and she went outside to the courtyard in front of her building to catch some air [BR 48]. When the officers were done, she observed Det. Moultrie, PO Kyrk, PO Ortiz and some other officers exit the building. § 87(2)(b) asked the officers for the warrant, but no one responded. PO Kyrk and PO Ortiz approached § 87(2)(b) and explained to her that someone informed them there was a gun inside her apartment. § 87(2)(b) asked PO Kyrk and PO Ortiz to see the warrant, and they just apologized to her, but did not show the warrant. The officers then left the scene.

§ 87(2)(b) did not corroborate either § 87(2)(b)'s or § 87(2)(b)'s accounts that they asked PO Ortiz to show them the search warrant [BR 02].

PO Ortiz stated after § 87(2)(b) was apprehended, he headed inside the target apartment with the search warrant he had in hand to execute it [BR 51]. After the search was complete, he and the rest of the officers exited the apartment to the hallway, where he observed § 87(2)(b) and § 87(2)(b). PO Ortiz explained to § 87(2)(b) and § 87(2)(b) that officers had just executed a valid

search warrant for their apartment. One of them asked PO Ortiz to see the search warrant in English, and PO Ortiz showed it to them. PO Ortiz denied refusing to show the search warrant to any of the civilians. Later, PO Ortiz noted he did not recall where specifically on his person he had the warrant and indicated it can be carried in various locations. Upon being shown video recording from Camera 4, PO Ortiz identified himself entering the building at 37 seconds and indicated he did not see either a folder or a warrant in his hand. PO Ortiz could not explain where on his person he could have had the warrant or whether he had any pockets on his attire.

During her CCRB interview, Lt. Mylott stated she asked PO Ortiz whether he had the warrant on him twice before leaving the command, and PO Ortiz replied he did [BR 52]. After the search warrant was executed and all the officers exited the building, she observed § 87(2)(b) and § 87(2)(b) talking to PO Ortiz by the main entrance of the building in Spanish. Since Lt. Mylott does not speak Spanish, she was not aware what they were talking about. Lt. Mylott did not hear either § 87(2)(b) or § 87(2)(b) ask PO Ortiz for the search warrant in English, nor did she hear him refuse to show it to them. Lt. Mylott did not observe PO Ortiz show the search warrant to any of the civilians either. Lt. Mylott confirmed that PO Ortiz had the search warrant on his person during the incident; however, she was not aware where on his person he had it. Lt. Mylott added that her officers tend to leave copies of search warrants inside target locations if they are unoccupied, but she did not recall if one was left inside § 87(2)(b)'s apartment on that day.

PO Kyrk, PO Barbosa, Det. Moultrie, and Det. Reyes all testified that they did not hear either § 87(2)(b) or § 87(2)(b) ask PO Ortiz for the search warrant nor did they hear PO Ortiz refuse to show it to them [BR 53, 54, 55, 56]. Although neither PO Kyrk nor Det. Moultrie observed PO Kyrk show the search warrant to § 87(2)(b) and § 87(2)(b) they both believed he did since he was the investigating officer assigned to the search warrant case.

Video recording from Camera 4 shows PO Ortiz, PO Kyrk, Lt. Mylott, PO Barbosa, Det. Moultrie and Det. Reyes all enter the building at various times during the first two minutes of the video [BR 43]. At 37 seconds, PO Ortiz enters the building without holding any folders or paperwork in his hands. At 9:11 minutes and 9:37 minutes, respectively, § 87(2)(b) and § 87(2)(b) exit the building through the front door and do not return. At 11:41 minutes, all six officers gather in the lobby of the building and leave. At 12:00 minutes, § 87(2)(b) and § 87(2)(b) exit the building as well.

As per the recording of § 87(2)(b)'s 911 call that she made at § 87(2)(b) she repeatedly stated to the 911 operator that officers did not show her any paperwork during the incident [BR 45].

According to NYPD Patrol Guide Procedure 221-17, an officer executing a search warrant should, when able to do so safely, show a copy of the search warrant upon request [BR 68].

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations L and M** be closed as **substantiated**.

Allegation N – Abuse of Authority: In front of § 87(2)(b) in the Bronx, Police Officer Albert Garcia threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that after the search was complete, she observed Sgt. Diaz, PO Mejia and PO Garcia stand by their unmarked vehicle at the corner of § 87(2)(b) [BR 48]. § 87(2)(b) approached them and informed them she was humiliated by their actions. PO Garcia and Sgt. Diaz explained that other officers executed a search warrant, and § 87(2)(b) asked for it. In response, PO Garcia told her she could also be arrested if she kept talking. § 87(2)(b) inquired what for, and PO Garcia explained because she was speaking too loudly. § 87(2)(b) stated she was free to speak and left the location. There were no other civilians present during that interaction.

Neither § 87(2)(b) nor § 87(2)(b) indicated they were present with § 87(2)(b) during her exchange with PO Garcia [BR 01, 02].

PO Garcia testified that as Lt. Mylott and other officers from her command went inside § 87(2)(b)'s building to execute the search warrant, he and his partners were asked to stay at the corner of the building and watch the target apartment's windows in case anything was thrown out [BR 58]. At some point, § 87(2)(b) and § 87(2)(b) approached them, and § 87(2)(b) started screaming and cursing at the officers saying, "Fuck you, guys. What the fuck are you doing here?" and using other profanities. PO Garcia did not recall if he or his partners engaged in a conversation with § 87(2)(b) or whether they attempted to explain to her anything. PO Garcia denied threatening § 87(2)(b) with arrest nor did he recall either of his partners do so.

Sgt. Diaz and PO Mejia stated that they left the location after § 87(2)(b) was handcuffed and denied having any interaction with § 87(2)(b) and threatening to arrest her [BR 57, 59]. None of the officers recognized § 87(2)(b) after her photograph was shown to them during the interview.

§ 87(2)(g)

Therefore, it is recommended that **Allegation N** be closed as **unsubstantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

[Redacted text block]

Squad: 15

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date